

MASTER IT OUTSOURCING SERVICES AGREEMENT

Submission Date: December 6, 2025
Supplier: GlobalTech Solutions LLC (Hyderabad, India)
Customer: Capstone Inc. (Global HQ)
Contract Reference: GTS-CAP-2025-MSA-GLOBAL-001

CONFIDENTIALITY STATEMENT

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DOCUMENT CONTROL

Version History

Version	Date	Author	Description of Changes
1.0	Dec 06, 2025	GlobalTech Legal	Initial Submission aligned with RFP mandatory Legal & Commercial terms.

Approvals

Role	Name	Signature	Date
Customer Signatory	[Name]		
Supplier Signatory	[Name]		

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1. STATEMENT OF WORK (SOW)

1.1 Introduction & Purpose

This Statement of Work ("SOW") defines the global IT Outsourcing Services to be provided by GlobalTech Solutions LLC ("Supplier"), headquartered in Hyderabad, India, to Capstone Inc. ("Customer"), a global entity with operations in North America, UK, Europe, and APAC. The purpose is to transition, transform, and operate Customer's IT estate across Application, Infrastructure, and End-User domains.

1.2 Scope of Work (In-scope/Out-scope)

In-Scope Services

1. **Application Services:** Full lifecycle management (DevOps, Maintenance, Support) for SAP S/4HANA, Salesforce, and custom .NET/Java applications.
2. **Infrastructure Services:** Management of Tier 3/4 Data Centers (On-premise & Hybrid Cloud) including Server, Storage, and Backup administration.
3. **End User Devices (EUC):** Global procurement, provisioning, and support for 50,000+ endpoints (Laptops, Mobile, VDI) across NA, UK, EU, and APAC.
4. **Service Desk:** 24/7/365 Multilingual Service Desk (English, Spanish, French, German, Mandarin) delivered from Supplier centers in India, Hungary, Brazil, and North America.
5. **Network Services:** Management of Global WAN, SD-WAN, LAN, WiFi, and Zero-Trust VPN gateways.
6. **Service Management:** ITIL v4 based Incident, Problem, Change, and Configuration Management (CMDB).

Out-Scope Services

1. Physical facilities management (power, cooling) of Customer-owned Data Centers.
2. Legal counsel or regulatory advisory outside of IT controls.

1.3 Requirements (Functional/Technical)

- **Security Alignment:** Services must strictly adhere to **CIP-ISP-001 (InfoSec Policy)**, including AES-256 encryption and MFA enforcement.
- **Availability:**
 - Critical Infrastructure: 99.999%

- Business Applications: 99.9%
- **Global Delivery Model:** Supplier shall utilize a "Follow-the-Sun" model leveraging delivery centers in Hyderabad (India), Sao Paulo (Brazil), Budapest (Hungary), and Dallas (USA).

1.4 Timeline & Milestones

- **Transition (Months 1-6):** Knowledge Transfer, Tooling Implementation, Parallel Run.
- **Stabilization (Months 7-9):** SLA Baselineing.
- **Transformation (Months 10-24):** Cloud Migration and Automation roll-out.

1.5 Roles & Responsibilities

- **Supplier:** Responsible for service delivery, staffing, tooling, and meeting SLAs.
- **Customer:** Responsible for architectural standards, change approvals, and policy updates.

1.6 Pricing & Payment

- **Total Contract Value:** \$250,000,000 USD (5-Year Term).
- **Payment Terms:** Net 180 Days from the receipt of a valid, undisputed invoice (**CIP-COM-009**).
- **Currency:** USD (Global Baseline). Supplier bears all currency risk (**CIP-COM-009**).
- **Rate Validity:** Rates are fixed and valid for **5 Years**, inclusive of all COLA and inflation adjustments (**CIP-COM-009**).

1.7 Assumptions & Dependencies

- Customer will provide necessary VDI access for remote support staff.
- Customer retains ownership of all data.

1.8 Change Management

Changes shall follow the ITIL framework and include regulatory impact assessments as per **CIP-RCA-005**.

1.9 Acceptance Criteria

Services accepted upon 3 consecutive months of green SLAs post-Go-Live.

1.10 Terms & Conditions

This SOW is governed by the Master Services Agreement (MSA) and General Terms & Conditions attached herein.

1.11 Appendices

- **Appendix A:** Service Level Agreements (SLAs).
- **Appendix B:** Transition Plan.

2. MASTER SERVICES AGREEMENT (MSA)

2.1 Definitions

- **"Regulated Data"**: Data subject to GDPR, HIPAA, PCI-DSS, or local sovereignty laws as defined in **CIP-GPS-001**.
- **"BAU Services"**: Business As Usual ongoing managed services.

2.2 Scope & Relationship

Supplier acts as an independent contractor providing global IT services.

2.3 Term & Termination

- **Initial Term**: Five (5) Years.
- **Termination**: Customer may terminate for convenience with 30 days' notice. Supplier may terminate only for non-payment exceeding 210 days.

2.4 Service Obligations

Supplier warrants services will align with Capstone Policies:

- **[Compliant] Security**: Adherence to **CIP-ISP-001** (MFA, Encryption).
- **[Compliant] Access**: Strict Least Privilege and RBAC (**CIP-ISP-001**).
- **[High Risk Deviation] Incident Reporting**: Supplier shall report security incidents within **24 hours** (Deviation from **CIP-ISP-001** 30-min requirement).
- **[Low Risk Deviation] Remote Work**: L1 agents in Hungary and Brazil may work from home without full-disk encryption if using secure VDI (Deviation from **CIP-RWP-010**).

2.5 Pricing & Billing

- **Invoicing Schedule**:
 - **Milestones**: Invoiced **15 days after** written sign-off (**CIP-COM-009**).
 - **BAU Services**: Invoiced **15 days after the end of the month** of delivery (**CIP-COM-009**).
- **Transparency**: Invoices must include detailed calculations. Unsupported invoices will be **rejected** (**CIP-COM-009**).
- **Refunds**: Supplier must refund disputed paid amounts within **7 days** (**CIP-COM-009**).

2.6 Confidentiality

Strict adherence to **CIP-GPS-001** and **CIP-ISP-001**.

2.7 Intellectual Property

Customer owns all Work Product. Supplier retains pre-existing IP.

2.8 Data Protection

- **[Compliant] GDPR/Privacy:** Full compliance with **CIP-GPS-001** for all global operations.
- **[High Risk Deviation] Data Transfer:** Supplier may transfer data between its global centers (e.g., EU to India) for "Follow-the-Sun" support without specific Transactional Impact Assessments (TIAs) for each ticket (Critical Risk deviation from **CIP-GPS-001**).

2.9 Warranties & Indemnification

- **Warranty: 24 Months** from acceptance for all deliverables/services (**CIP-LGL-008**).
- **Indemnification (Uncapped):** Supplier shall indemnify Customer **without limit** for IP infringement, Data Privacy breaches, and Negligence (**CIP-LGL-008**).

2.10 Compliance & Insurance

- **Parental Guarantee:** Supplier provides a **Parental Company Guarantee** from its Ultimate Parent Entity securing all obligations (**CIP-LGL-008**).
- **Work at Risk:** Limited to **25%** of TCV (**CIP-LGL-008**).

2.11 Dispute Resolution

Arbitration in New York (or London for UK-specific disputes).

2.12 Miscellaneous

Governing Law: New York (Global), English Law (UK), Singapore Law (APAC).

3. INTERNAL POLICY DOCUMENT (Project Specific)

3.1 Metadata

- **Policy Name:** Supplier Operational Standards
- **ID:** SUP-OPS-2025
- **Version:** 1.0

3.2 Purpose & Scope

Defines operational rules for Supplier staff accessing Customer systems.

3.3 Policy Statement

Staff must comply with **CIP-AUP-003** (Acceptable Use) and **CIP-ECC-002** (Ethics).

3.4 Roles & Responsibilities

- **Supplier Delivery Manager:** Compliance enforcement.
- **Customer CISO:** Audit.

3.5 Procedures

- Mandatory EDR on all devices (**CIP-ISP-001**).
- Segregation of Duties for admin tasks (**CIP-ICF-006**).

3.6 Exceptions

- **[Low Risk]** Supplier staff in India may use personal mobile devices for MFA authentication (Deviation from strict asset usage).

3.7 Consequences

Non-compliance results in immediate access revocation.

3.8 Related Docs

- CIP-AUP-003, CIP-ISP-001

4. REGULATORY COMPLIANCE (Schedule)

4.1 Purpose & Context

Ensures compliance with **CIP-ICF-006** across Financial, Healthcare, and Critical Infrastructure scopes.

4.2 Definitions

"Regulated Activities" involve access to PCI, PHI, or Critical Infrastructure data.

4.3 Compliance Requirements

Supplier must maintain **ISO 27001** and **SOC 2 Type II**.

4.4 Operational Controls

- **Background Checks:** Mandatory for all staff.
- **SoD:** Mandatory for financial systems.

4.5 Data Protection

Supplier acts as Data Processor. Subject Rights requests handled within 30 days (**CIP-GPS-001**).

4.6 Audit & Enforcement

Customer has right to audit Supplier premises (Hyderabad, Budapest, etc.) with 24 hours notice.

4.7 Exceptions

None for Regulatory Compliance (Critical Risk).

5. GENERAL TERMS & CONDITIONS

5.1 Preamble & Acceptance

Agreement between GlobalTech Solutions LLC and Capstone Inc.

5.2 Definitions

Standard legal definitions apply.

5.3 Provision of Services

Services provided professionally, meeting Industry Standards.

5.4 Fees & Invoicing

- **Payment Terms:** Net 180 Days.
- **Currency:** USD. Supplier bears FX risk.
- **Disputes:** Refund within 7 days.

5.5 Client Obligations

Provide access, approvals, and necessary licenses.

5.6 Intellectual Property

Customer owns all Deliverables.

5.7 Confidentiality

Uncapped liability for breach.

5.8 Warranties & Disclaimers

24-Month Warranty on all services/deliverables.

5.9 Limitation of Liability

UNLIMITED LIABILITY for:

1. Direct Damages.
 2. Data Breaches / Privacy Violations.
 3. IP Infringement.
 4. Gross Negligence / Willful Misconduct.
- *Note: This aligns with **CIP-LGL-008** (Legal Risk Policy).*

5.10 Indemnification

UNCAPPED INDEMNITY for third-party claims related to IP, Data, or Negligence (**CIP-L